

and men come to present it, it is a tumultuous Assembly; because there needs but one or two for that purpose. But in such cases as these, it is not a set number that makes the Assembly Unlawfull, but such a number, as the present Officers are not able to suppress, and bring to Justice.

When an unusuall number of men, assemble against a man whom they accuse; the Assembly is an Unlawfull tumult; because they may deliver their accusation to the Magistrate by a few, or by one man. Such was the case of St. Paul at Ephesus; where Demetrius, and a great number of other men, brought two of Pauls companions before the Magistrate, saying with one Voyce, *Great is Diana of the Ephesians*; which was their way of demanding Justice against them for teaching the people such doctrine, as was against their Religion, and Trade. The occasion here, considering the Lawes of that People, was just; yet was their Assembly Judged Unlawfull, and the Magistrate reprehended them for it, in these words, * *If Demetrius and the other work-men can accuse any man, of any thing, there be Pleas, and Deputies, let them accuse one another. And if you have any other thing to demand, your case may be judged in an Assembly Lawfully called. For we are in danger to be accused for this dayes sedition, because, there is no cause by which any man can render any reason of this Concourse of People.* Where he calleth an Assembly, whereof men can give no just account, a Sedition, and such as they could not answer for. And this is all I shall say concerning Systemes, and Assemblies of People, which may be compared (as I said,) to the Similar parts of mans Body; such as be Lawfull, to the Muscles; such as are Unlawfull, to Wens, Biles, and Apostemes, engendred by the unnaturall conflux of evill humours.

CHAP. XXIII.

Of the PUBLIQUE MINISTERS of Sovereign Power.

IN the last Chapter I have spoken of the Similar parts of a Commonwealth: In this I shall speak of the parts Organicall, which are Publique Ministers.

A PUBLIQUE MINISTER, is he, that by the Sovereign, (whether a Monarch, or an Assembly,) is employed in any affaires, with Authority to represent in that employment, the Person of the Commonwealth. And whereas every man, or assembly that hath Sovereignty, representeth two Persons, or (as the more common phrase is) has two Capacities, one Naturall, and another Politique; (as a Monarch, hath the person not onely of the Commonwealth, but also of a man; and a Sovereign Assembly hath the Person not onely of the Commonwealth, but also of the Assembly); they that be servants to them in their naturall Capacity, are not Publique Ministers; but those onely that serve them in the Administration of

*Publique
Minister
Who.*